



Regulatory Radar

Sample Impact Assessment Report
Digital Personal Data Protection Act (DPDPA) 2023 — Amendment
Gazette No. MHA-2026-04

REGULATORY CHANGE ID

DPDPA-AMEND-2026-04-11 · MHA Gazette · Effective: 01 Jun 2026

IMPACT CARDS

3 Generated

POLICIES AFFECTED

7 Internal

ANALYSIS TIME

4.2 minutes

COMPLIANCE WINDOW

48 days

Regulatory Change Overview & Impact Scope

The **Regulatory Analyzer Agent** detected and processed DPDPA Amendment Gazette No. MHA-2026-04 published on 11 April 2026. Multi-agent analysis completed in 4.2 minutes, mapping 8 new/modified clauses against 22 internal policy documents, contract templates, and system architecture documents.

3

CRITICAL GAPS FOUND

7

POLICIES AFFECTED

48

DAYS TO COMPLIANCE

₹250Cr+

MAX PENALTY EXPOSURE

Scoring Method (How to read Impact Cards): Each Impact Card includes (1) *What changed* (regulatory clause delta), (2) *Current gap* (mapped internal policy/system), (3) *Evidence* (document citation), and (4) *Priority action* with owner and deadline. Severity is assigned using a rule-based rubric: deadline criticality, penalty exposure, customer contract impact, and operational readiness.

⚠ **COMPLIANCE ALERT:** DPDPA Amendment introduces 72-hour mandatory breach notification (was 30 days), new consent withdrawal mechanisms, and expanded definitions of "significant data fiduciaries." 3 critical gaps identified in current policies. Manual review estimated: 3-4 weeks. Deadline: 01 June 2026 (48 days).

 **IC-001: Breach Notification Deadline — 30 Days → 72 Hours**

DPDPA Clause 27(b) as Amended · Affects: Incident Response Policy v3.2, DPA contracts

 **CRITICAL**

 **WHAT CHANGED**
Mandatory breach notification to Data Protection Board reduced from 30 calendar days to 72 hours from awareness of breach. Notification must include: nature, categories affected, approximate number of data principals, likely consequences, and remedial measures.

 **CURRENT POLICY GAP**
Incident Response Policy v3.2 specifies 30-day notification. 14 active DPA contracts with enterprise clients reference 30-day clause. No 72-hour reporting workflow exists. Initial breach triage currently takes 5-7 business days.

 **POLICY CITATION**
Incident_Response_Policy_v3.2.pdf → Section 5.1: "Notification — 30 Calendar Days"

 **PENALTY EXPOSURE**
Non-compliance: Up to ₹250 Crore per incident under DPDPA penalty schedule. Reputational risk for enterprise client contracts.

 **Priority Action:** (1) Update Incident Response Policy to 72-hour SLA. (2) Implement automated breach detection pipeline with < 1-hour classification SLA. (3) Amend all 14 DPA contracts. Owner: CISO / Legal. Deadline: 01 May 2026.

Impact Cards 2 & 3 — Consent & Data Fiduciary Changes

IC-002: Consent Withdrawal — Real-Time Mechanism Required

DPDPA Clause 6(4) as Amended · Affects: Customer Portal, Privacy Policy, Data Retention System

HIGH

WHAT CHANGED

Customers must be able to withdraw consent for data processing "as easily as consent was given" and processing must cease within 24 hours of withdrawal. Previously, withdrawal could be submitted via email with 7-day processing time.

POLICY CITATION

Privacy_Policy_v2024.pdf → Section 4: "Consent Withdrawal – 7 Business Days via email"

CURRENT POLICY GAP

Current consent withdrawal is email-based with 7-day SLA (clearly non-compliant). Customer portal has no self-service consent management. Data processing pipelines are not designed for real-time cessation.

SYSTEM IMPACT

Customer portal redesign, real-time data processing suppression, audit log of consent state per data principal required.

Priority Action: Build self-service consent dashboard in customer portal. Implement consent revocation event stream to halt all downstream processing pipelines within 24 hours. Owner: Product + Engineering. Deadline: 15 May 2026.

IC-003: Expanded SDF Definition — New Obligations Apply

DPDPA Clause 10 as Amended · Affects: Data Classification, Contract Templates

MEDIUM

WHAT CHANGED

Significant Data Fiduciary (SDF) threshold lowered: any entity processing data of >10 lakh (was 1 crore) data principals OR offering services to children is classified as SDF, triggering Data Protection Impact Assessments (DPIA) and appointment of a Data Protection Officer.

EVIDENCE SOURCE

Data_Classification_Policy_v2023.txt → Section 2.1 "SDF Classification – 1 Crore+ threshold [OUTDATED]"

CURRENT POLICY GAP

TCS currently processes data of approximately 45-55 lakh data principals across 3 BFSI clients. This now qualifies as SDF. No DPIA framework exists. No appointed DPO. Neither obligation currently met.

BUSINESS IMPACT

SDF obligations include annual DPIA, DPO appointment, and enhanced transparency requirements. SDF non-compliance: up to ₹150 Crore penalty.

Priority Action: (1) Appoint DPO or engage qualified DPO-as-a-service. (2) Initiate DPIA framework design. (3) Update Data Classification Policy to reflect new 10L threshold. Owner: Legal + Compliance. Deadline: 01 Jun 2026.

Consolidated Action Plan — Priority Order

Update Incident Response Policy to 72-hour breach notification SLA

Owner: CISO · Deadline: 01 May 2026 · Status: NOT STARTED

Amend 14 active DPA client contracts to reflect 72-hour clause

Owner: Legal · Deadline: 15 May 2026 · Status: NOT STARTED

Build real-time consent withdrawal dashboard in customer portal

Owner: Product Engineering · Deadline: 15 May 2026 · Status: NOT STARTED

Implement 24-hour data processing cessation pipeline

Owner: Data Engineering · Deadline: 22 May 2026 · Status: NOT STARTED

Appoint Data Protection Officer (DPO) or DPO-as-a-Service

Owner: Legal / HR · Deadline: 01 Jun 2026 · Status: NOT STARTED

Initiate Data Protection Impact Assessment (DPIA) framework

Owner: Compliance · Deadline: 01 Jun 2026 · Status: NOT STARTED

Update Data Classification Policy — SDF threshold from 1Cr to 10L

Owner: DPO · Deadline: 01 Jun 2026 · Status: NOT STARTED

HITL Review Required: This AI-generated Impact Assessment is advisory and must be reviewed by the Compliance team and Legal before formal action is taken. The Regulatory Radar provides analysis — human compliance officers retain authority over all remediation decisions.